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January 28, 2026

Honorable Gregory Carro
Justice of the Supreme Court of the State of New York
Criminal Term: Part 32
100 Centre Street
New York, NY 10013

Re: People v. Luigi Mangione
Indictment No. IND-75657-24

We are writing to request that the Court set a trial date of July 1, 2026, in the above referenced matter. This case has been pending before this Court since December 23, 2024, the day this defendant was arraigned on New York County Indictment No. 75657-24 charging him with Murder in the First Degree and related charges. Since that date, there has been extensive pre-trial litigation, including a nine-day long suppression hearing and protracted motion practice before that.

The People reiterate our readiness to proceed to trial in this matter—we filed Certificates of Compliance and Readiness on three prior occasions. The statutory period for the defendant to contest our compliance has long passed.

The only outstanding issues before this Court are (1) a ruling on the defendant's suppression motions, and (2) defense compliance with our reciprocal discovery demands. Both issues can be resolved well before July 1, 2026. This Court will rule on the defendant's suppression motions on May 18, 2026. Moreover, the People repeatedly have demanded defense compliance. Yet, the People have not received any discovery, despite a series of statutory and court-ordered deadlines. By granting the People's parallel application, this Court can ensure this case is ready for trial on or before July 1.

As this Court is aware, U.S. District Court Judge Margaret Garnett has scheduled jury selection in defendant's federal case for September 8, 2026, with the start of testimony to tentatively begin either on October 13, 2026, or January 11, 2027,

depending on that court's ruling on the death penalty eligibility of the case (which is expected on January 30, 2026).

There are significant state interests that are implicated by defendant's crime, its investigation, and its prosecution. These state interests would be unfairly prejudiced by an unnecessary delay of this important matter until after defendant's federal trial.

On December 4, 2024, Brian Thompson, a fifty-year old father of two was brutally executed by being shot in the back as he was walking into the Hilton Hotel to attend a conference. This heinous crime happened in midtown Manhattan, one of the busiest commercial areas in this County and spread fear and shock throughout Manhattan. New York State unquestionably has a deep interest in, upholding the fundamental right to life, maintaining public order, and delivering justice for a murder committed in its jurisdiction. Indeed, almost all murders are prosecuted in this state by local prosecutors.

For this reason, local law enforcement—the NYPD and the New York County District Attorney's Office—led the investigation into identifying and apprehending Mr. Thompson's killer. Scores of NYPD detectives worked around the clock to find Mr. Thompson's killer. Specialized NYPD units actively participated in the investigation, including ballistics analysis, latent print analysis and the crime scene unit. The District Attorney's Office drafted countless court processes to acquire necessary evidence, each item collected on behalf of a New York County grand jury and often authorized by a New York State judge.

As a result of these efforts, on December 9, 2024, the Altoona Police Department arrested the defendant, based on photos disseminated by NYPD from surveillance footage local law enforcement had collected. A New York State judge issued an arrest warrant that day, which provided legal authority for the State of Pennsylvania to hold the defendant on our behalf.

A New York County grand jury indicted defendant on December 17, 2024—just 13 days after the assassination. A total of twenty-five witnesses testified before the New York County grand jury. Six of them came in from Altoona to testify. The remaining nineteen witnesses were members of the New York City Police Department, New York County District Attorney's Office, New York City Office of Chief Medical Examiner, and civilians.

Of course, the investigation continued for months after defendant's apprehension. In addition to the witnesses called before the Grand Jury, the NYPD and the New York County District Attorney's Office have interviewed many other

witnesses and reviewed copious electronic data extracted pursuant to search warrants. Substantial state resources have been dedicated to this case and New York State has a significant interest in this case proceeding to trial without undue delay.

Federal prosecutors became involved on December 18, 2024, two weeks after Mr. Thompson was murdered, when a federal writ was served on NYPD to produce defendant into federal custody.

It is entirely natural then that the state case would proceed to trial prior to the federal case. Indeed, the law countenances it. *See United States v. Warren*, 610 F. 2d 680, 684-85 (9th Cir. 1980) (“Normally the sovereign which first arrests an individual acquires priority of jurisdiction for purposes of trial, sentencing and incarceration.”). And, the United States Attorney for the Southern District of New York has said that it expects the State case to proceed to trial first. *See* Press Release, *Luigi Mangione Charged...*, Department of Justice (SDNY Dec. 19, 2024).¹ Moreover, the reverse would unduly delay the State trial—first, during the federal trial itself, and then, during the protracted litigation that would follow on the impact a federal verdict would have on the state charges.

In sum, the State has an overriding interest in trying this defendant for the cold-blooded execution of Brian Thompson on December 4, 2024. It resulted in the tragic death of a guest to our city on our streets. Federal law supports our request that we proceed first and our right to a speedy resolution of this case would be severely compromised should the federal trial proceed first.

We therefore request that the Court set a July 1 trial date.

Sincerely,

Joel J. Seidemann

Joel J. Seidemann
Assistant District Attorney
Senior Trial Counsel



Cc: Karen Friedman-Agnifilo

¹ <https://www.justice.gov/usao-sdny/pr/luigi-mangione-charged-stalking-and-murder-unitedhealthcare-ceo-brian-thompson-and-use> (accessed Jan. 26, 2026).